Campaign Contributions and Bureaucratic Oversight: A Case Study of the Federal Energy Regulatory Commission

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Abstract

In this paper we explore whether congressional letter-marking activity is driven by campaign contributions in the context of the Federal Energy Regulatory Commission. Drawing on 10 years worth of letters from legislators to the commission, we find that these letters are filled with specific references to companies (and in some instances the CEOs) they are seeking to assist. We match these letters with campaign finance records to see whether Members' efforts are primarily concerned with their donors or their constituents.

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1 Introduction

Concern over the potential for campaign contributions to influence the policy-making process has been a central question in American politics over the last several decades. Much of the academic study in this area has focused around whether campaign contributions influence legislators' roll call votes. While these numerous studies have produced somewhat mixed results, on the whole the answer appears to be no: that most of the time campaign contributions don't influnence how a member votes in the context of a roll call vote. While the academic focus on roll call votes is perhaps not surprising given the availability of the data, this precise availability and visibility makes them a poor vehicle for those seeking to quietly influence the policy-making process who may not want to draw scrunity from journalist or constituents.

In comparison to the intensity acaedmic scrutiny given to roll call votes, much less attention has been given to congressional letter-marking actvity–when legislators write letters to bureaucratic agencies urging them toward or against some regulatory decision. While technically these letters are subject to federal open records act requirements that process is often slow and laborious, meaning that in practice these letters rarely see the light of day and are highly unlikely to draw public scrunity. Thus lettermarking may be a preferred vehicle for those seeking to quitely influence the policy-making process through campaign contributions. In this paper, we deeply examine one agency – the Federal Energy Regulatory Commission–and whether campaign contributions to legislators appears to explain whether or not those legislators write letters to the agency on behalf of those companies.

2 Doug Arnold's Impact: Studying Congress-Bureaucracy

3 How to Study Influence of Money

3.1 Findings: Previous Research on Influence of Corporate Money

4 Lettermarking & FOIA Data

4.1 Examples of FERC Letters

5 Dependent Variable: Attempts to Influence Bureaucracy

6 Conclusion

7 Future Research

- Lobbying Data
- Expansion to earlier time periods
- Expansion to other agencies
- Earmark Ban discontinuity
- Speed of Review as an Outcome. That's often what the companies are asking for in these reqests.